

		“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’” (<i>Wilson v. Southern California Edison Co.</i> (2015) 234 Cal.App.4th 123, 164 [citing <i>Cruz v. HomeBase</i> (2000) 83 Cal.App.4th 160, 167].) Plaintiffs did not allege sufficient facts with the required specificity to support Plaintiffs’ prayer for punitive damages. Plaintiffs did not allege sufficient facts to state Plaintiffs’ sixth cause of action for fraudulent inducement concealment. Plaintiff did not allege sufficient facts to seek punitive damages against a corporation. Plaintiff may not seek punitive damages for a Song Beverly Act violation. The Song-Beverly Act provides for civil remedies and does not provide for punitive damages. (Civ. Code, § 1794.) California courts have explained that civil penalties “have been likened, by courts, to punitive damages.” (<i>Suman v. Superior Court</i> (1995) 39 Cal.App.4th 1309, 1317, citing <i>Kwan v. Mercedes-Benz of North America, Inc.</i> (1994) 23 Cal.App.4th 174, 184.) A plaintiff may not recover both civil penalties <i>and</i> punitive damages “based upon substantially the same conduct.” (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 226.) Accordingly, Toyota’s motion to strike is granted with 15 days leave to amend. Toyota shall give notice.
9.	2025-1508956 Trejo vs. Cambria Hotel & Suites Anaheim Resort	DEMURRER Defendants Aimbridge Hospitality, LLC’s, Celeste McNees’, Charles McNees’, and CS Anaheim Hotel Investments, LLC’s general demurrer to Plaintiff Erika Trejo’s Complaint is sustained with 15 days leave to amend. The special demurrer is overruled. Plaintiff’s Complaint is not so confusing that Defendants cannot determine tell what they are supposed to respond to. (See <i>Khoury v. Maly’s of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) Plaintiff’s opposition was not filed and served until 7/16/26. It was due 9 Court days before the hearing on 7/9/26 pursuant to Code Civ. Proc., § 1005(b). No explanation as to the lateness was provided in the briefing. Also, Plaintiff’s opposition exceeds the 15-page limit under CRC, Rule 3.1113(d), as it is 19 pages. Additionally, the opposition lacks a table of contents and authorities. (See CRC, Rule 3.1113(h))

(“memorandum that exceeds 10 pages must include a table of contents and a table of authorities.”.)

The Court thereby exercises its discretion and declines to consider Plaintiff’s late and non-compliant briefing. (See CRC, Rule 3.1113(g), CRC, Rule 3.1300(d), *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)

On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

1st cause of action for battery

“A battery is any intentional, unlawful and harmful contact by one person with the person of another. (*Delia S. v. Torres* (1982) 134 Cal.App.3d 471, 480, 184 Cal.Rptr. 787; and see Rest.2d Torts, § 18.) A harmful contact, intentionally done is the essence of a battery.” (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611.)

Plaintiff’s allegations do not amount to battery against Defendants. No physical contact is alleged between Plaintiff and Defendants. (See *Gunnell v. Metrocolor Labs* (2001) 92 Cal.App.4th 710, 724-725 (“battery cannot be accomplished without a touching of the victim.”); (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611 (“A harmful contact, intentionally done is the essence of a battery.”).)

Also, Plaintiff’s allegations with respect to the element of intent are lacking. While Plaintiff alleges Defendants knew about the bedbugs and intentionally failed to implement procedures to prevent and eradicate the infestations, there are no actual facts pled to support these conclusory claims.

4th cause of action for Intentional Infliction of Emotional Distress

The elements of Intentional Infliction of Emotional Distress are (1) Defendant's conduct was outrageous, (2) Defendant intended to cause Plaintiff emotional distress or acted with reckless disregard of the probability that Plaintiff would suffer emotional distress, (3) Plaintiff suffered severe emotional distress, and (4) Defendant's conduct was a substantial factor in causing Plaintiff's severe emotional distress. (CACI 1620.) "A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community...[and] intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–51.)

Plaintiff alleges she stayed only one night in the hotel, and that when she informed the front desk of the issue, they told her it might be mosquitos, offered to change the bedding, and they would have someone inspect the hotel room. (Complaint, ¶¶ 18-20.)

While Plaintiff alleges that Defendants had knowledge of other guest reviews reporting bedbugs at the hotels, she does not state anything more specific than this.

Plaintiff fails to allege facts to support intentional, extreme and outrageous conduct.

5th cause of action for fraudulent concealment

The elements of fraud are "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Causes of action for fraud are subject to stricter pleading standards; fraud must be plead with specificity. (*Committee on Children's Television v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216-227.)

Plaintiff alleges in this cause of action that Defendants were aware of the bedbug infestation in Plaintiff's room via unidentified online reviews and intentionally failed to inform Plaintiff of the infestation in order to turn a profit. (Complaint, ¶¶ 100, 110.)

These allegations are not specific enough to allege fraud. For example, Plaintiff fails to allege any details regarding the online reviews, such as when they were posted/when Plaintiff acquired this knowledge.

6th cause of action for private nuisance

Civ. Code, § 3479 states: “Anything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.”

Pursuant to *Koll-Irvine Center Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041, “private nuisance is a civil wrong based on disturbance of rights in land.”

Plaintiff fails to allege any rights in land.

Furthermore, Plaintiff’s claims - based on Defendants’ alleged failure to abate the bed bug infestation – are the same as those stated in support of Plaintiff’s negligence cause of action.

In *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, the Court of Appeal affirmed the trial court’s ruling that the plaintiff could not maintain a nuisance cause of action seeking the same recovery as its negligence cause of action. (See also *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 543 (court affirmed the lower court’s sustaining of the demurrer to the nuisance cause of action without leave to amend because it “merely restate[d] their negligence claims “using a different label.”).)

Plaintiff does not request different relief in her nuisance cause of action than her negligence cause of action. The allegations are based on the same alleged tort.

7th cause of action for public nuisance

To allege a cause of action for public nuisance, Plaintiff must allege that Defendants a defendant created a condition that was harmful to health or interfered with the comfortable enjoyment of life or property; that the condition affected a substantial number of people at the same time; that an ordinary person would be reasonably annoyed or disturbed by the condition; that the seriousness of the harm outweighs the social utility of the defendant's' conduct; that the plaintiff did not consent to the conduct; that the plaintiff suffered harm that was different from the type of harm suffered by the general public; and that the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See *Birke v. Oakwood Worldwide*, 169 Cal.App.4th 1540, 1548.)

Plaintiff states general allegations about bedbug infestations, but fails to plead that this specific bedbug infestation affected the general public. In addition, as with the 6th cause of action, Plaintiff's claims mirror those in her negligence cause of action.

8th cause of action for breach of contract

The elements of breach of contract are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*Miles v. Deutsche Bank National Trust Company* (2015) 236 Cal.App.4th 394, 402.) In pleading a breach of contract cause of action, plaintiff must allege whether the contract is written, oral, or implied by conduct. (See Code Civ. Proc., § 430.10(g); *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458-459.)

Plaintiff's allegations are deficient as she does not attach a contract or allege any terms of the contract.

Based on the foregoing, Defendants' general demurrer is sustained in its entirety with leave to amend.

MOTION TO STRIKE

Defendants Aimbridge Hospitality, LLC's, Celeste McNees', Charles McNees', and CS Anaheim Hotel Investments, LLC's motion to strike Plaintiff Erika Trejo's Complaint is granted with 15 days leave to amend.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (*Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (*Perkins v. Superior Court* (1981) 117 Cal.App. 3d 1, 6.)

Defendants move to strike Plaintiff's claims for punitive damages.

Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if

		the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).) At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiff admits that when she spoke to the front desk about the bed bug that the unidentified manager suggested that it was possibly mosquitoes, offered to change the bedding, and told her they would inspect the room. (Complaint, ¶¶ 18, 20.) This conduct does not support a finding of malice, oppression or fraud. Accordingly, the motion to strike Plaintiff’s punitive damages claims is granted. Defendants shall give notice of both rulings.
10.	2025-1502493 Plush Transportation , LLC vs. Pep Boys, LLC	The general and special demurrer by Defendant The Pep Boys Manny Moe & Jack of California LLC, erroneously sued and served as Pep Boys, LLC (“Defendant”) to the third cause of action for fraud – intentional misrepresentation alleged in the First Amended Complaint (“FAC”) filed by Plaintiff Plush Transportation, LLC (“Plaintiff”) is overruled in part and sustained in part with leave to amend. Defendant’s motion to strike the punitive damages allegations and prayer for exemplary damages and punitive damages from Plaintiff’s First Amended Complaint is granted with leave to amend. The Court once again reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. DEMURRER TO FAC <i>Third cause of action for fraud – intentional misrepresentation</i> Defendant demurs to this cause of action on the grounds that the FAC failed to allege sufficient facts to state the third cause of action and is uncertain. (Demurrer, 3:2-3.) Defendant’s supporting memorandum does not discuss uncertainty. Accordingly,